

STATE OF NEW YORK

6356--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 4, 2025

Introduced by M. of A. GRIFFIN -- read once and referred to the Committee on Education -- recommitted to the Committee on Education in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to admission to charter schools

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (b) of subdivision 2 of section 2854 of the
2 education law, as amended by section 3 of subpart A of part B of chapter
3 20 of the laws of 2015, is amended to read as follows:

4 (b) [~~Any~~] (i) In cities with a population of one million or more, any
5 child who is qualified under the laws of this state for admission to a
6 public school is qualified for admission to a charter school.

7 (ii) Any child who is qualified under the laws of this state for
8 admission to a public school building not in good standing with the
9 department is qualified for admission to a charter school.

10 (iii) Any child who is qualified under the laws of this state for
11 admission to a public school building in good standing with the depart-
12 ment is not qualified for admission to a charter school unless a parent
13 in a parental relationship with such child provides a justification and
14 educational-based reasoning to the superintendent of the public school
15 district which such school building is located in. The department shall
16 create a document to help a parent in a parental relationship with a
17 child provide such justifications and educational-based reasons and
18 distribute such document to all public school buildings in good standing
19 with the department. Upon receipt of such document by the superinten-
20 dent, a scheduled meeting between the parent and school district shall
21 take place. No charter school shall admit a student from a public
22 school building in good standing with the department until the justi-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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fication and educational-based reasoning document has been submitted to the superintendent of such public school district pursuant to this subparagraph. This subparagraph shall not apply to school buildings in good standing with the department which are located in cities with a population of one million or more.

(b-1) Applications for admission to a charter school shall be submitted on a uniform application form created by the department and shall be made available by a charter school in languages predominately spoken in the community in which such charter school is located. The school shall enroll each eligible student who submits a timely application by the first day of April each year, unless the number of applications exceeds the capacity of the grade level or building. In such cases, students shall be accepted from among applicants by a random selection process, provided, however, that an enrollment preference shall be provided to pupils returning to the charter school in the second or any subsequent year of operation and pupils residing in the school district in which the charter school is located, and siblings of pupils already enrolled in the charter school. Preference may also be provided to children of employees of the charter school or charter management organization, provided that such children of employees may constitute no more than fifteen percent of the charter school's total enrollment. The commissioner shall establish regulations to require that the random selection process conducted pursuant to this paragraph be performed in a transparent and equitable manner and to require that the time and place of the random selection process be publicized in a manner consistent with the requirements of section one hundred four of the public officers law and be open to the public. For the purposes of this paragraph and paragraph (a) of this subdivision, the school district in which the charter school is located shall mean, for the city school district of the city of New York, the community district in which the charter school is located.

§ 2. This act shall take effect on the first of July next succeeding the date on which it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.